



File No.: EXP202200144

ARCHIVING RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, A.A.A.) filed a complaint with the German data protection authority of Bavaria on April 13, 2021. The complaint is directed against NH HOTEL GROUP S.A. with NIF A28027944 (hereinafter, NH HOTEL). The reasons for the complaint are as follows:

A.A.A. stayed at the NH Hotel in ***LOCATION and became aware of a processing of personal data that he/she considered excessive. Therefore, he/she requested access to his/her personal data in accordance with Article 15 of the GDPR on December 7, 2020. He/she sent the request to the email address dpo@nh-hotels.com. Access was never granted.

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on December 27, 2021, and was registered with the Spanish Agency for Data Protection (AEPD) on January 10, 2022. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the main supervisory authority, given that the respondent has its main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the German data protection authority of Bavaria, the authorities of the Netherlands, France, Italy, Poland, Sweden, Denmark, Portugal, Belgium, and the German authorities of Rhineland-Palatinate, Brandenburg, Hesse, and Baden-Württemberg. All of them under Article 4.22 of the GDPR, given that the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

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THIRD: The German data protection authority of Bavaria shared the following documentation through the IMI System on February 16, 2022 (original in German and its translation into English):

- Complaint filed with the German authority
- Printout of the email from A.A.A. to the address dpo@nh-hotels.com, dated December 7, 2020, with the following content (original in German, unofficial translation):

"Good day,

I would like to request access to my data under Article 15 GDPR. Please confirm if you are processing my personal data (according to Art. 4.1 and 2 of the GDPR).

If you are, I request access under Article 15.1 of the GDPR to

1. all personal data about me that you have stored, including any possible pseudonymized data about me (as defined in Article 4.5 GDPR);
2. the purposes of the processing;
3. the categories of personal data being processed;
4. the recipients or categories of recipients to whom the personal data have been or will be

communicated;

5. if possible, the expected retention period for the personal data or, if not possible, the criteria used to determine that period;

6. if the personal data have not been obtained from me, any available information about their source;

7. if applicable, the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

If you process anonymous data about me, I would like you not only to inform me about this but also to clearly explain the procedure used.

If you transfer my personal data to a third country or international organization, I would like to be informed about the appropriate safeguards in accordance with Article 46 of the GDPR regarding the transfer.

My request specifically includes all other offers and companies for which you are responsible under Article 4.7 of the GDPR.

Under Article 12.3 of the GDPR, the information must be provided without delay, and in any case within one month of receiving the request. According to Article 12.3 of the GDPR, it must be provided free of charge.

I have added the following information to identify myself:

Name: A.A.A.

Company: (...)

Date of birth: (...)

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Address: ***ADDRESS.1

E-Mail: A.A.A.

Last reservation number: (...)

If you do not comply with my request within the indicated timeframe, I reserve the right to initiate legal actions against you and file a complaint with the competent data protection authority.

Thank you in advance for your effort.

Best regards, A.A.A.”

- Copy of a letter sent by the respondent to the German data protection authority in Berlin, dated August 11, 2021, containing, among other things, the following content (original in German, unofficial translation):

“Request for Information dated July 12, 2021

Claimant: A.A.A.

Reference: (...)

Dear (...),

We have been appointed as External Data Protection Delegates by NH Hotels Deutschland GmbH ("NHD"). In this capacity, we respond to your letter dated July 12, 2021 as follows:

Question 1: As the data controller or processor regarding the aforementioned facts, do you carry out cross-border processing of personal data in accordance with Article 4.23 of the GDPR? Please provide your own analysis and state your reasons.

NHD operates the NH Hotel in ***LOCATION and is the contracting party in the accommodation contract with the respective hotel guest, including the claimant.

NHD is a subsidiary of NH Hotel Group S.A. with its registered office at Santa Engracia 120, 28003 Madrid, Spain ("NH Group").

The NH Group provides its subsidiaries with central IT systems and services (including the reservation system), most of which are located in Spain. In this context, the personal data of German guests is specifically transferred to Spain to be processed in the NH Group systems there.

Question 2: Is the aforementioned processing of personal data carried out for the purpose of ensuring

the rights of the data subjects in connection with the activities of branches in more than one Member State? In this case, please specify all branches and answer the following questions to identify the main establishment:

- i. In which establishment in the EU are decisions regarding the purposes and means of processing made? Does this establishment have the authority to implement these decisions?
- ii. If not, in which Member State is the company's registered office located?

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NHD guarantees its guests the rights regarding their personal data. Requests from data subjects are received through a central email address within the NH Group and are forwarded to the individual subsidiaries (for example, NHD for Germany) for response. (...)”

- Copy of a letter sent by the respondent to the German data protection authority in Berlin, dated December 15, 2021, containing, among other things, the following content (original in German, unofficial translation):

“Your letter dated November 24, 2021

Claimant: A.A.A.

Reference: (...)

Dear (...),

Regarding your aforementioned letter, we inform you that in this case, the Spanish parent company (NH Hotel Group S.A.) has not transmitted the access request; for this reason, the processing of the access request has been delayed (...).”

FOURTH: On May 4, 2022, in accordance with Article 64 then in force of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by A.A.A. was admitted for processing.

FIFTH: By virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD, the General Subdirectorate for Data Inspection had to proceed with preliminary investigative actions to clarify the facts in question.

In this regard, paragraph 2 of Article 67 “Preliminary Investigative Actions” of the LOPDGDD states: “2. Preliminary investigative actions shall be subject to the provisions of section 2 of chapter I of title VII of this organic law and may not exceed a duration of eighteen months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Data Protection Agency acts on its own initiative.”

SIXTH: On May 29, 2023, the Director of the Spanish Data Protection Agency declared the expiration of the preliminary investigative actions due to the passage of more than twelve months since their initiation, subsequently opening new investigative actions.

SEVENTH: As a result of the actions taken, the following points have been noted:

On July 4, 2023, a document was submitted to the AEPD on behalf of the respondent, in response to an information request, with entry registration number REGAGE23(...), which included, among other information, the following:

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1. Statement that the email account to which A.A.A. sent their access request was that of the data protection officer (dpo@nh-hotels.com), which was not the same as the address made available to data subjects for the exercise of their rights, dataprotection@nh-hotels.com. It was indicated that

“However, to ensure compliance and safeguard the rights and freedoms of data subjects, requests received at the DPO's email address are forwarded to this account for the exercise of rights, proceeding with the management and processing of all of them.”

2. Statement that, in this case, A.A.A.'s request “...was sent on December 7, 2020, and the email received went directly to the spam folder of the DPO of NH Hotel Group, without knowledge of its receipt,” and that knowledge of this request was obtained because on July 14, 2021, NH Hotels Deutschland GmbH received an information request from the German data protection authority informing them of the complaint filed by A.A.A. due to the non-fulfillment of their right of access. Thus, it was indicated that the data protection officer of NH Hotels Deutschland GmbH responded to the German authority on August 11, 2021, and informed the data protection officer of the NH group in Spain about this situation, and that, after this, the data protection officer of the NH group searched for A.A.A.'s email and found it in their spam folder and initiated the internal procedure to respond to A.A.A.'s exercise of the right of access, sending the response to the claimant on September 10, 2021, and indicating that, since then, they have not received any communication from A.A.A.

3. Printout of an email in German, dated September 10, 2021, sent by dataprotection@nh-hotels.com to ***EMAIL.1, in response to the email sent by A.A.A. on December 7, 2020. In this email dated September 10, 2021, A.A.A. is apologized to for the delay in response and is informed “dass NH HOTEL GROUP am Datum Ihrer Anfrage personenbezogene Daten von Ihnen verarbeitet.” [Unofficial translation: “that NH HOTEL GROUP was processing your personal data on the date of your request”] and the following information about the processing of their personal data is offered:

“(i) We inform you that we have received your data about the offered services directly from you.

(ii) The categories of data we process are:

1. Identifying data.
2. Data on personal characteristics.
3. Economic and financial data.

(iii) Your data will be processed for the following purposes:

- Management of your reservations in the NH hotel chain, which will accompany this letter.
- Conducting satisfaction surveys for the services provided by the entity responsible for the accommodation.

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(iv) Your personal data will be retained by NH HOTEL GROUP for the following periods:

- For the purpose of managing your reservation, your data will be stored during the statute of limitations for claims.
- To conduct satisfaction studies for the services provided by the owner of the accommodation, your data will be retained during the statute of limitations for legal actions.

(v) Your data has been forwarded to:

- To the entity NH HOTELES DEUTSCHLAND GMBH, for the purpose of providing services at the NH ***LOCATION hotel.
- To the entity NH HOTELES DEUTSCHLAND GMBH, for the purpose of providing services at the NH Dortmund hotel.
- To the entity NH HOTELES AUSTRIA GMBH, for the purpose of providing services at the NH Graz City hotel.

We also inform you that you can exercise your right to rectification, deletion, restriction, portability, and objection to the processing of your personal data at any time in accordance with the currently applicable legislation, and that you are entitled to withdraw any previously given consent in accordance with the conditions of the applicable legislation and to file a complaint with the Spanish Data Protection Authority.”

[Unofficial translation:

“(i) We inform you that we have received your data about the offered services directly from you.

(ii) The categories of data we process are:

1. Identifying data.
2. Data on personal characteristics.
3. Economic and financial data.

(iii) Your data will be processed for the following purposes:

- Management of your reservations in the NH hotel chain, which will accompany this letter.
- Conducting satisfaction surveys for the services provided by the entity responsible for the accommodation.

(iv) NH HOTEL GROUP will retain your personal data for: Data retention periods:

- To manage your reservation, your data will be stored during the statute of limitations for claims.
- To conduct satisfaction studies for the services provided by the owner of the accommodation, your data will be retained during the statute of limitations for legal actions.

(v) Your data has been transmitted to:

- The entity NH HOTELES DEUTSCHLAND GmbH, for the provision of services at the NH ***LOCATION hotel.
- The entity NH HOTELES DEUTSCHLAND GmbH, for the provision of services at the NH Dortmund hotel.
- The entity NH HOTELES AUSTRIA GmbH, for the provision of services at the NH Graz City hotel.

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Furthermore, we inform you that you can exercise your rights of rectification, erasure, limitation, portability, and objection to the processing of your personal data at any time in accordance with current legislation, and that you have the right to withdraw your prior consent in accordance with the conditions of the applicable legislation and to file a complaint with the Spanish Data Protection Agency.”

This email dated September 20, 2021, is attached with a document named “***DOCUMENTO.1”.

4. Copy of the Privacy Policy and the Terms and Conditions of Use available on the NH Group website as of December 7, 2020. It was indicated that both documents were accepted on several occasions by A.A.A. “...specifically, on five occasions, which coincide with the number of service requests made by him, for which it is necessary to accept both the Privacy Policy and the Terms of Use. Without this acceptance of both documents, it is not possible to carry out the provision of services by NH Hotel Group.”

In the submitted document, in its section “11. EXERCISE OF RIGHTS,” it is stated that “The user may send a written request to NH HOTEL GROUP, at the address indicated in the header of this Policy, or by email to the address dataprotection@nh-hotels.com, attaching a photocopy of their identity document, at any time and free of charge,” and the identification data appearing in section “1. IDENTIFICATION” of this Privacy Policy are as follows:

“- Identity: NH HOTEL GROUP, S.A. (hereinafter, “NH HOTEL GROUP”)

- NIF: A-28027944

- Address: Calle Santa Engracia No. 120, 28003 Madrid, Spain

- Data Protection Officer (DPO): you can contact our DPO through the following means:

- E-mail: dpo@nh-hotels.com

- Phone: Headquarters at Calle Santa Engracia 120, 7th floor, 28003, Madrid

Indicating in the reference “Data Protection Officer”

5. Allegation that “NH Hotel Group has an effective and properly implemented internal rights management procedure. In fact, in the year 2022, NH Hotel Group responded to 3,845 requests for rights exercised by data subjects from January 1 to December 31, and regarding the current year, from January 1, 2023, to today, more than 1,500 rights exercises have been responded to. Therefore, in the present case analyzed, the delay in the response was not due to a lack of compliance or effectiveness of this procedure, but rather it was an error...” as the request from A.A.A. was received “...in the spam

or junk mail folder of the DPO.”

6. Regarding the measures taken, among others, it was indicated that “the rights management procedure regarding data protection, existing and implemented since May 2018, has been updated, although this update has been carried out to ensure that, in the event that requests for rights are received from data subjects that go directly to this C/ Jorge Juan, 6

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spam or junk mail folder, a response should be provided and addressed. This update affects both the email account made available to interested parties to exercise their rights, dataprotection@nh-hotels.com, and the account of the DPO where the request that motivates this claim was received, dpo@nh-hotels.com.” It is indicated that “in relation to the coordination between the DPO of NH Hotel Group and the DPO of NH Germany, new measures and additional procedures have been established to strengthen coordination between both and ensure alignment in their functions. Among other things, a periodic report on the functions or matters that both are performing has been created, and bi-weekly meetings have been established between both so that communication and coordination develop more smoothly.”

According to the diligence dated May 30, 2024, on that day, this Agency navigated the website

<https://web.archive.org/> to obtain the historical content of the privacy policy of the website

<https://www.nh-hotels.com> (<https://www.nh-hotels.com/privacy-policy>), obtaining the following results:

7. The historical data of the privacy policy corresponding to the year 2020 (from May 19, 2020, and August 9, 2020) are not legible.

8. The first date of the year 2021 for which a copy of the privacy policy is retained is July 21, 2021, which in its section “11. EXERCISE OF RIGHTS” states the following: “Users may write to NH HOTEL GROUP, at the address noted at the top of this Policy, or by email to protecciondedatos@nh-hotels.com, including a copy of their identity document, at any time and free of charge” and, at the beginning of this privacy policy, the section “1. IDENTIFICATION” appears with the following content:

“- Identity: NH HOTEL GROUP, S.A. (hereinafter “NH HOTEL GROUP”)

- Tax ID: A-28027944

- Address: Calle Santa Engracia 120, 7ª, 28003, Madrid

- Data Protection Officer (DPO): you may contact our DPO by the following:

- E-mail: dpo@nh-hotels.com

- Telephone: Headquarters at Calle Santa Engracia 120, 7ª, 28003, Madrid

- Please state the reference “Data Protection Officer”

EIGHTH: According to the report obtained from the AXESOR tool on May 30, 2024, the entity MINOR HOTELS EUROPE & AMERICAS S.A., with Tax ID A28027944, is a company of type “(...)”, established in 1881, with a turnover of (...) euros in the year 2022 and (...) employees.

NINTH: On August 13, 2024, the Director adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on that same day, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to formulate relevant and justified objections. Within the deadline for this purpose, the interested supervisory authorities did not present relevant and justified objections in this regard, so it was considered that all authorities agreed with this draft decision and were bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR. The processing period of the proceedings was automatically suspended during that period, in accordance with the provisions of Article 64 of the LOPDGDD.

TENTH: On December 19, 2024, the Director adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on that same day, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to formulate relevant and justified objections. Within the deadline for this purpose, the interested supervisory authorities did not present relevant and

justified objections in this regard, so it was considered that all authorities agreed with this draft decision and were bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR. The processing period of the proceedings was automatically suspended during that period, in accordance with the provisions of Article 64 of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions and powers granted to each supervisory authority by Articles 57, 58.2, and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Preliminary Issues

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In the present case, according to the provisions established in Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that NH HOTEL GROUP S.A. collects and retains, among others, the following personal data of individuals: name and surname, date of birth, and email address, among other processing activities.

NH HOTEL GROUP S.A. carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR, as indicated by the responding party in its written submission dated August 11, 2021.

IV

Unfulfilled Obligation. Right of Access of the Data Subject

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller

may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

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4. The right to obtain a copy mentioned in section 3 shall not adversely affect the rights and freedoms of others."

In the present case, A.A.A. sent an email to the address dpo@nh-hotels.com on December 7, 2020, requesting access to his personal data under Article 15 of the GDPR.

In its letter dated July 4, 2023, the responding party indicated that the aforementioned email was received directly in the spam or junk mail folder of the DPO of NH Hotel Group, and that knowledge of the existence of this request was obtained because on July 14, 2021, NH Hotels Deutschland GmbH received an information request from the German data protection authority informing them of the complaint filed by A.A.A. due to the failure to address his right of access.

It was noted that on September 10, 2021, an email was sent to A.A.A. providing the requested information.

In relation to this issue, the Guidelines 01/2022 on the rights of data subjects - Right of access, state that "there are no specific requirements regarding the format of a request. The data controller must provide appropriate and easy-to-use communication channels that can be easily utilized by the data subject. However, the data subject is not obliged to use these specific channels and may instead send the request to an official contact point of the data controller. The data controller is not obliged to respond to requests sent to completely random or apparently incorrect addresses."

Thus, in section 3.1.2 regarding the form of the request, it is stated:

"52. As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

53. The EDPB encourages data controllers to provide the most appropriate and easy-to-use communication channels, in accordance with Article 12, paragraph 2, and Article 25, so that the data subject can submit an effective request. However, if the data subject submits a request through a communication channel provided by the data controller that is different from the one indicated as preferred, such request shall generally be considered effective, and the data controller must process such request accordingly (see the examples provided below). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of data subjects is facilitated (for example, if the data subject sends the request to an employee who is on leave, an automatic message informing the data subject of an alternative communication channel for their request could be a reasonable effort).

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54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject.

55. The data controller is also not obliged to respond to a request sent to the email address of an employee of the data controller who may not be involved in processing requests related to the rights of the data subjects (for example, drivers, cleaning staff, etc.). These requests will not be considered

effective if the data controller has clearly provided the data subject with an appropriate communication channel. However, if the data subject sends a request to the employee of the data controller who deals daily with the matters of the data subject (a single point of contact for a client, such as a personal account manager), such contact should not be considered random, and the data controller must make all reasonable efforts to process such request in a way that it can be redirected to the point of contact and respond within the timeframes established by the GDPR.

56. Nevertheless, the EDPB recommends, as good practice, that data controllers implement appropriate mechanisms to facilitate the exercise of the rights of data subjects, including auto-response systems to inform about staff absences and appropriate alternative contact, and, where possible, mechanisms to improve internal communication among employees regarding requests received by those who may not be competent to process them.

In this case, A.A.A. has directed their request to the email address dpo@nh-hotels.com, which is the contact address of the DPO of the responding party. This was stated in the privacy policy available on the NH group website on December 7, 2020, section 1, and this has been acknowledged by the responding party itself in its writing of July 4, 2023.

In this regard, section 56 of the aforementioned Guidelines cites a first example in which “a data controller X provides, on its website and in its privacy policy, two email addresses – the general email of the data controller: contacto@X.com and the email of the data protection contact of the data controller: solicitudes@X.com. Additionally, the data controller X indicates on its website that, to send any inquiry or request regarding the processing of personal data, one should contact the data protection contact at the indicated email. However, the data subject sends a request to the general email of the data controller: contacto@X.com. In this case, the data controller must make all reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact and be responded to within the timeframe established by the GDPR. Furthermore, the data controller cannot extend the deadline to respond to the request, only...

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because the interested party has sent a request to the general email of the data controller and not to the data protection contact point.” This first example from section 56 of the aforementioned Guidelines could be extrapolated to the situation that occurred in this case. The interested party (A.A.A.) sent their access request to an email address provided by the company to which it is addressed (more specifically, the address of the data protection officer, to whom a question related to a privacy issue such as the right to access personal data is referred). Therefore, the data controller (the responding party) should have made all reasonable efforts to respond to such a request within the deadline. The fact that the data controller decided to use a tool to filter SPAM emails that filtered the request from the interested party does not preclude the obligation from existing in this case. Therefore, in accordance with the evidence available at this time, it is considered that the known facts could constitute an infringement attributable to NH HOTEL GROUP S.A., for violation of the previously transcribed article.

V

Classification and qualification of the infringement for the purposes of the statute of limitations of Article 15 of the GDPR

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of the data subjects under Articles 12 to 22;

c) the transfers of personal data to a recipient in a third country or an international organization under

Articles 44 to 49;

d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
e) the failure to comply with a decision or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

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For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will be subject to a three-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679."

In this case, as has been stated, A.A.A. requested access to their personal data from NH HOTEL GROUP S.A. on December 7, 2020, which was responded to on September 10, 2021. Since in this case such an infringement is subject to a three-year statute of limitations, in accordance with the provisions of Article 72.1 of the LOPDGDD, the aforementioned infringement would currently be time-barred, which prevents the initiation of sanctioning proceedings.

Therefore, in accordance with the aforementioned, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to NH HOTEL GROUP S.A. with NIF A28027944.

THIRD: TO COMMUNICATE the decision to the authority of Bavaria (Germany), before which the complaint has been filed, so that the complainant is informed.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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15/15

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